

Contracting Officer's Determination – Limiting Competition at or below the Simplified Acquisition Threshold

1. Contracting Activity: Department of the Army, U.S. Army Corps of Engineers (USACE), Nashville District 110 9th Ave. South, Nashville, Tennessee 37203

2. Description of Action: This requirement is for other than full and open competition for the procurement of two (2) remote switch operators. The Contract will be a Firm Fixed-Price Supply contract, sole sourced to CBS ArcSafe Inc., (Cage code 5M2R7). The total estimated value of this acquisition is \$ [REDACTED].

Nature: ☒ New Requirement ☐ Follow-on Requirement

Contract Vehicle: ☒ Purchase Order
☐ Blanket Purchase Agreement (BPA)
☐ Order/BPA against FSS Contract # _____
☐ Order against Multiple Award IDIQ Contract # _____
☐ Order against a single award IDC Contract # _____
☐ Modification to existing PO/TO/DO/Call Order # _____

Pricing/Contract Type: ☒ Fixed Price ☐ Time & Materials/Labor Hours
☐ Cost Reimbursable ☐ Hybrid

Funds: ☒ Operations & Maintenance, Army (OMA)

Name of Proposed Contractor(s) and Address:

CBS ArcSafe Inc.

2616 Sirius Rd

Denton, TX 76208

Brand Name Buy: ☒ Yes ☐ No

Description of Services or Supplies: The U.S. Army Corps of Engineers, Nashville District has a need to supply and deliver two (2) CBS Arc Safe remote switch operators for Nickajack Lock and Chickamauga Lock. The remote switch operator and remote switching kits are used to keep personnel outside of the arc-flash hazard boundary

Controlled by: USACE
Controlled by: CELRN-CT
CUI Category: PROCURE
Limited Designation Control: FED ONLY
POC: [REDACTED]

while performing electrical tasks. The work shall consist of furnishing materials, labor, and equipment necessary to supply and deliver two (2) CBS Arc Safe remote switch operators. The installation will be completed by the USACE, personnel at both projects. The period of performance is estimated at one-hundred and twenty (120) days.

4. Authority: FAR 13.106-1(b)(1)

☒ FAR 13.106-1(b)(1): For purchases not exceeding the simplified acquisition threshold (SAT), only one source reasonably available, urgency, exclusive licensing agreements, brand name, or industrial mobilization.

Or

- ☐ FAR 8.405-6(a)(1)(i)(B) and 8.405-6(b)(1) Brand Name
- ☐ FAR 8.405-6(a)(1)(i)(A) Urgency
- ☐ FAR 8.405-6(a)(1)(i)(B) Only One Source is Capable
- ☐ FAR 8.405-6(a)(1)(i)(C) Logical Follow-on

Or

- ☐ FAR 16.505(b)(2)(i)(B) Only One Awardee is Capable
- ☐ FAR 16.505(a)(4) Brand Name
- ☐ FAR 16.505(b)(2)(i)(A) Urgency
- ☐ FAR 16.505(b)(2)(i)(C) Logical Follow-on
- ☐ FAR 16.505(b)(2)(i)(D) Minimum Guarantee

5. Reasons for Authority Cited:

The use of the original supplier of materials and components, CBS ArcSafe Group is requested since the government wishes to maintain compatibility with the existing system. CBS ArcSafe Inc. is the manufacturer of the equipment requested and is recommended by the Corps of Engineers, Maintenance Section to help facilitate the compatibility and consistency with the existing breakers in the Motor Control Center.

Using a non-brand name manufacturer may impact the reliability of the total system. Non-compatibility could lead to potential maintenance issues which would impact the optimal performance of the equipment and increase the likelihood of a malfunction. This could potentially compromise the safety of the staff working on the various electrical tasks.

If a non-brand name remote switch operator equipment is to be procured, extensive time would be required to train staff on the non-brand name parts and equipment to make them compatible with the existing breakers. This would impact the mission by causing significant delays.

Additionally, procuring a non-brand name remote switch operator could result in a substantial duplication of cost to the Government, since the acquisition of non-compatible equipment would result in the need for additional parts to make them compatible with the existing system. This additional cost to the government is not expected to be recovered through competition.

6. Publicizing Contract Actions: For FAR Part 13 actions, the public display and synopsis requirements of FAR 5.101 and FAR 5.203 ☐ do not apply due to the \$ threshold, ☒ apply and will be followed, or ☐ do not apply due to an exception at 5.202 _____

Requirement to post justification in accordance with FAR 8.405-6(b)(3), FAR 13.105(c), or FAR 16.505(a)(4)(iii)(A)

- ☐ Action is NOT a brand name restriction and is under SAT, no posting required.
- ☐ Action is a brand name restriction, under \$15K, no posting required.
- ☒ Action is a brand name restriction, over \$15K. It will be redacted and posted with the solicitation.
- ☐ Action is a brand name restriction over \$25K but will not be posted due to exception:
 - ☐ FAR 6.305(f)
 - ☐ FAR 8.405-6(b)(3)(iii)(A)
 - ☐ FAR 8.405-6(b)(3)(iii)(B)
 - ☐ FAR 8.405-6(b)(3)(iii)(C)
 - ☐ FAR 16.505(a)(4)(iii)(C)

7. Market Research: Market Research conducted using a SBA dynamic small business search under NAICS 335313 shows that there are plenty of small businesses certified under the NAICS code. However, due to the brand name specifications of this requirement as mentioned above, the supply and delivery of remote switch operators will be sole sourced to CBS ArcSafe Inc. who is small business under NAICS 335313. Pursuing a Full and Open Competition procurement for this requirement will cause significant delays and detrimental injury to the Government.

8. Other Facts: N/A

9. Legal Review: I have reviewed this justification and find it adequate to support other than full and open competition.

Assistant District Counsel

26-Feb-25
Date

10. Technical/Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

02/26/2025**Date****11. Contracting Officer Certification/Approval:**

I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable based upon a price analysis comparison with the Government Estimate and the quote from CBS ArcSafe Inc.

I certify that this justification is accurate and complete to the best of my knowledge and belief, and that completing this purchase as a sole source is in the best interest of the Government. Additionally, I approve this justification to limit competition subject to the availability of funds and provided that the services herein described have otherwise been authorized for acquisition.

26-Feb-2025**Date****Contracting Officer**